



U.S. Department  
of Transportation

Research and  
Special Programs  
Administration

400 Seventh Street, S.W.  
Washington, D.C. 20590

DOT-E 10927

EXPIRATION DATE: November 30, 1996

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Hoechst Celanese Corporation, Pampa, Texas
2. PURPOSE AND LIMITATION: This exemption authorizes tank car loading when equipped with an auxiliary bottom outlet valve and the temporary application of valves installed on the interior heater coils and provides no relief from any regulation other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.31(b)(1)(2)
5. BASIS. This exemption is based on Hoechst Celanese Corporation's application of October 20, 1992, submitted in accordance with 49 CFR 107.103, and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

| Hazardous materials<br>description/proper<br>shipping name     | Hazard<br>Class/Division | Identification<br>number | Packing<br>Group |
|----------------------------------------------------------------|--------------------------|--------------------------|------------------|
| Acetic Acid                                                    | 8                        | UN 2789                  | II               |
| Acetic Anhydride                                               | 8                        | UN 1715                  | II               |
| Butyric Acid                                                   | 8                        | UN 2820                  | III              |
| Combustible Liquid,<br>N.O.S. (2-Ethyl Hexyl<br>Acrylate)      | Combustible              | NA 1993                  | II               |
| Corrosive Liquid, N.O.S.<br>(Acetic Anhydride,<br>Acetic Acid) | 8                        | UN 1760                  | I                |

| Hazardous materials description/proper shipping name      | Hazard Class/Division | Identification number | Packing Group |
|-----------------------------------------------------------|-----------------------|-----------------------|---------------|
| Corrosive Liquid, N.O.S.<br>(Propionic Acid, Acetic Acid) | 8                     | UN 1760               | I             |
| Ethyl Acetate                                             | 3                     | UN 1173               | II            |
| Ethyl Methyl Ketone                                       | 3                     | UN 1193               | II            |
| Flammable Liquid N.O.S.<br>(Acetone, Methanol)            | 3                     | UN 1993               | I             |
| Formic Acid                                               | 8                     | UN 1779               | II            |
| Methyl Acrylate,<br>inhibited                             | 3                     | UN 1919               | II            |
| Methyl Formate                                            | 3                     | UN 1243               | I             |
| Propionic Acid                                            | 8                     | UN 1848               | III           |
| n-Propyl Acetate                                          | 3                     | UN 1276               | II            |

7. PACKAGING(S) and SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed are DOT non-DOT Specification tank cars authorized for the products indicated above. Packagings must be equipped with efficient hand brakes which must comply with the Railroad Safety Appliance Standards in 49 CFR Part 231.

b. MARKING - The provisions of 49 CFR Part 107, Appendix B, Subpart B are hereby waived.

8. SPECIAL PROVISIONS.

a. The bottom discharge outlet valve assembly of all tank cars operating under this exemption must be visually inspected for leakage after removal of the auxiliary valve and before application of the outlet cap or plug and before the car is offered for transportation.

b. The hand brake must be set and at least one wheel blocked in both directions on the first and last car provided the grade of the track is less than or equal to 0.5 percent.

- c. For grades exceeding 0.5 percent, the following table shall be used to determine the percentage of additional hand brakes to be applied:

| Grade<br>(Percent) | Percentage of cars to have<br>hand brakes applied |
|--------------------|---------------------------------------------------|
| $> 0.5 \leq 0.6$   | 17                                                |
| $> 0.6 \leq 0.7$   | 20                                                |
| $> 0.7 \leq 0.8$   | 23                                                |
| $> 0.8 \leq 0.9$   | 26                                                |
| $> 0.9 \leq 1.0$   | 29                                                |

9. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

10. MODAL REQUIREMENTS:

- a. The Federal Railroad Administration is to be notified if any unusual incident such loss of product from any valves temporarily attached for the loading process. This notification should be directed to:

Federal Railroad Administration  
Office of Safety, RRS-12  
Hazardous Materials Division  
400 Seventh Street, S.W.  
Washington, D.C. 20590  
(202) 366-9252 or 366-0523

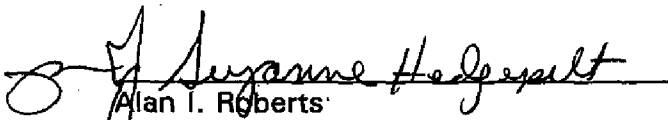
11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipment made under the terms of this exemption.

Issued at Washington, D.C.:

  
Alan I. Roberts  
Associate Administrator  
for Hazardous Materials Safety

APR 10 1995

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety,  
Research and Special Programs Administration, Department of Transportation,  
Washington, D.C. 20590.  
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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